

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1344

 By: Rosino, Mann, and Hicks of
 the Senate

6 and

7 Stinson, Waldron, and **Menz**
8 of the House

9
10 An Act relating to prescription drugs; creating the
11 Insulin Access and Affordability Program for
12 specified purposes; directing the State Department of
13 Health to provide certain financial support;
14 requiring certain agreement with nonprofit
 pharmaceutical manufacturer; describing agreement;
 requiring certain annual reporting; providing for
 codification; providing an effective date; and
 declaring an emergency.

15
16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1-271 of Title 63, unless there
19 is created a duplication in numbering, reads as follows:

20 A. There is hereby created the Insulin Access and Affordability
21 Program, which shall be administered by the State Department of
22 Health for the purpose of increasing patient access to affordable
23 insulin in this state, reducing prescription drug costs for
24 consumers and payors, bolstering American manufacturing of

1 pharmaceuticals, increasing marketplace competition, and addressing
2 shortages in the market for generic insulin.

3 B. The Department shall, with funds appropriated by the
4 Legislature, provide financial support to one or more pharmaceutical
5 manufacturers that manufacture, or are currently developing, a fast-
6 acting biosimilar insulin. Each such pharmaceutical manufacturer
7 shall manufacture the fast-acting biosimilar insulin in the United
8 States.

9 C. Prior to disbursement of any funds, the Department shall
10 enter into a memorandum of understanding (MOU) with the
11 pharmaceutical manufacturer or manufacturers, and each manufacturer
12 shall demonstrate a match of non-state funds equal to the amount
13 received by the manufacturer under the Insulin Access and
14 Affordability Program. The MOU shall include, but not be limited
15 to:

16 1. A commitment by the manufacturer to produce a fast-acting
17 biosimilar insulin at a low net cost without rebates, except as
18 required by law, within a time frame agreed upon between the
19 Department and the manufacturer;

20 2. A commitment by the manufacturer to manufacture fast-acting
21 biosimilar insulin in the United States;

22 3. Estimated savings from the purchase of low-cost, fast-acting
23 biosimilar insulin including, but not limited to, the estimated
24 savings to residents of this state and public and private payors

1 from the availability of low-cost, fast-acting biosimilar insulin;
2 and

3 4. Provisions for the repayment of the funds provided under the
4 Insulin Access and Affordability Program if the manufacturer fails
5 to produce and distribute a low-cost, fast-acting biosimilar insulin
6 or otherwise fails to substantially comply with the requirements of
7 this section or the MOU.

8 D. The pharmaceutical manufacturer or manufacturers shall
9 submit reports annually to the Department on the development,
10 production, and distribution, as applicable, of the fast-acting
11 biosimilar insulin in a manner prescribed by the Department. The
12 Department shall compile the reports into a single report and shall
13 annually submit such report electronically to the Governor, the
14 President Pro Tempore of the Senate, and the Speaker of the House of
15 Representatives.

16 SECTION 2. This act shall become effective July 1, 2026.

17 SECTION 3. It being immediately necessary for the preservation
18 of the public peace, health or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

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22 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
23 OVERSIGHT, dated 04/15/2026 - DO PASS, As Coauthored.
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